



Bill Number: S.B. 1725

Mesnard Floor Amendment

Reference to: JUDICIARY AND ELECTIONS

Committee Amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Removes language defining *excessive marijuana smoke or odor* and removes language establishing *excessive marijuana smoke or odor* as a criminal nuisance.
2. Redefines *excessive marijuana smoke or odor* as airborne emissions resulting from the burning, heating or vaporizing of marijuana or marijuana products that both:
 - a) are detectable by a reasonable person of ordinary sensibilities on other private property; and
 - b) occur for more than 30 consecutive minutes on a single occasion or on three or more separate days within a 30-day period.
3. Deems that excessive marijuana smoke or odor that crosses a property boundary and substantially and unreasonably interferes with the use and enjoyment of a nearby private property is a private nuisance.
4. Deems that excessive marijuana smoke or odor is a public nuisance if the person's conduct is intentional or the person knowingly and substantially interferes with the comfortable enjoyment of life or property.
5. Specifies that lawful possession or use of marijuana does not preclude a finding of nuisance, except that a court may consider possession of a valid registry identification card as a mitigating factor.
6. Provides that a person is not liable for committing a private nuisance unless the person has received notice of the interference and fails to abate it within five days.
7. Allows an affected property owner or resident to seek injunctive relief, compensatory damages for loss of use and enjoyment, costs and reasonable attorney fees and other equitable relief the court deems appropriate.
8. States that state law does not preempt a local ordinance that is more protective of private property rights.
9. Requires an affected property owner or resident to first file a complaint with the local jurisdiction before filing an action with the state, if that city, town, or county has adopted an ordinance regulating excessive marijuana smoke or odor.
10. Allows an affected property owner or resident to bring an action in justice court if the local jurisdiction declines to act or does not take final action within 30 days after the complaint is filed.

Amendment explanation prepared by Michelle Young

3/2/2026

11. States that a homeowner's association or condominium association is not precluded from taking action against a property owner.
12. Establishes that a person commits failure to comply with a marijuana smoke nuisance abatement order if both of the following exist:
 - a) a court of competent jurisdiction or a city, town or county acting under lawful authority has issued a written order directing the person to abate excessive marijuana smoke or odor that constitutes a nuisance; and
 - b) the person knowingly violates or refuses to comply with the order.
13. Specifies that each day a violation continues after an order is served constitutes a separate offense.
14. Establishes that failure to comply with a marijuana smoke nuisance abatement order is a petty offense.

MESNARD FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1725
(Reference to JUDICIARY AND ELECTIONS Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 12-991, Arizona Revised Statutes, is amended
3 to read:

4 ~~12-991. Nuisance; applicability; residential property used~~
5 ~~for crime; action to abate and prevent; notice;~~
6 ~~definitions~~

7 ~~A. Residential property that is regularly used in the commission of~~
8 ~~a crime is a nuisance, and the criminal activity causing the nuisance~~
9 ~~shall be enjoined, abated and prevented.~~

10 ~~B. If there is reason to believe that a nuisance as described in~~
11 ~~subsection A of this section exists, the attorney general, the county~~
12 ~~attorney, the city attorney, an association of homeowners or property~~
13 ~~owners established by a recorded contract or other declaration, including~~
14 ~~a condominium association as defined in section 33-1202 and a planned~~
15 ~~community association as defined in section 33-1802, or a resident of a~~
16 ~~county or city who is affected by the nuisance may bring an action in~~
17 ~~superior court against the owner, the owner's managing agent or any other~~

1 ~~party responsible for the property to abate and prevent the criminal~~
2 ~~activity.~~

3 ~~C. The court shall not assess a civil penalty against any person~~
4 ~~unless that person knew or had reason to know of the criminal activity.~~

5 ~~D. An injunction that is ordered pursuant to this article shall be~~
6 ~~necessary to protect the health and safety of the public or prevent~~
7 ~~further criminal activity.~~

8 ~~E. An order shall not affect the owner's interest in the property~~
9 ~~unless all of the following apply:~~

10 ~~1. The owner is a defendant in the action.~~

11 ~~2. The owner knew of the criminal activity.~~

12 ~~3. The owner failed to take reasonable, legally available actions~~
13 ~~to abate the nuisance.~~

14 ~~F. If the owner, the owner's managing agent or the party~~
15 ~~responsible for the property knows or has reason to know of the criminal~~
16 ~~activity and fails to take reasonable, legally available actions to abate~~
17 ~~the nuisance, a governmental authority may abate the nuisance. The court~~
18 ~~may assess the owner for the cost of abating the nuisance. On recording~~
19 ~~with the county recorder in the county in which the property is located,~~
20 ~~the assessment is prior to all other liens, obligations or encumbrances~~
21 ~~except for prior recorded mortgages, restitution liens, child support~~
22 ~~liens and general tax liens. A city, town or county may bring an action~~
23 ~~to enforce the assessment in the superior court in the county in which the~~
24 ~~property is located.~~

25 ~~G. For purposes of this section, an owner, the owner's managing~~
26 ~~agent or the party responsible for the property is deemed to know or have~~
27 ~~reason to know of the nuisance if the owner, the owner's managing agent or~~
28 ~~the party responsible for the property has received notice from a~~
29 ~~governmental authority of documented reports of criminal offenses~~
30 ~~occurring on the residential property.~~

31 ~~H. A law enforcement agency, a city attorney, a county attorney,~~
32 ~~the attorney general or any other person who is at least twenty-one years~~
33 ~~of age may serve the notice provided for in subsection G of this section,~~
34 ~~either personally or by certified mail. If personal service or service by~~
35 ~~certified mail cannot be completed or the address of the person to be~~
36 ~~notified is unknown, notice may be served by publishing the notice three~~
37 ~~times within ten consecutive days in a newspaper of general circulation in~~
38 ~~the county in which the property is located. In all cases a copy of the~~
39 ~~notice shall be posted on the premises where the nuisance exists.~~

40 ~~I. The notice shall be printed in at least twelve-point type in~~
41 ~~substantially the following form:~~

42 ~~Notice~~

43 ~~This is formal notice that the property at (insert~~
44 ~~address and unit number if applicable) has had (insert number~~
45 ~~of) arrests or (insert number of) documented reports of~~
46 ~~alleged criminal activity and is considered a nuisance under~~
47 ~~section 12-991, Arizona Revised Statutes. A copy of the~~
48 ~~police report numbers is attached. Police reports are~~
49 ~~available at (insert applicable police agency).~~

1 ~~Within five business days you must begin to take action~~
2 ~~that is legally available to you to abate the nuisance from~~
3 ~~the property. If you fail to do so, a restraining order to~~
4 ~~abate and prevent continuing or recurring criminal activity~~
5 ~~will be pursued.~~

6 ~~If you fail to cooperate to abate the nuisance, the~~
7 ~~appropriate authorities will abate the nuisance and their~~
8 ~~costs will be a lien on the property.~~

9 ~~You may contact (local agency) in order to obtain~~
10 ~~information on how to abate the nuisance.~~

11 ~~J. For the purposes of this article:~~

12 ~~1. "CRIME" INCLUDES THE CREATION OF EXCESSIVE MARIJUANA SMOKE AND~~
13 ~~ODOR.~~

14 ~~1. 2. "Owner" means a person or persons or a legal entity listed~~
15 ~~as the current title holder as recorded in the official records of the~~
16 ~~county recorder in the county in which the title is recorded.~~

17 ~~2. 3. "Owner's managing agent" means a person, corporation,~~
18 ~~partnership or limited liability company that is authorized by the owner~~
19 ~~to operate and manage the property.>>~~

20 ~~<<<Section 1. Section 13-2901, Arizona Revised Statutes, is~~
21 ~~amended to read:~~

22 ~~13-2901. Definitions~~

23 ~~In this chapter, unless the context otherwise requires:~~

24 ~~1. ["EXCESSIVE MARIJUANA SMOKE OR ODOR" MEANS MARIJUANA SMOKE OR~~
25 ~~ODOR THAT IS CAPABLE OF BEING DETECTED BY A PERSON ON THE PRIVATE PROPERTY~~
26 ~~OF ANOTHER PERSON.~~

27 ~~2.] "Marijuana"[:~~

28 ~~(a)] Means all parts of any plant of the genus cannabis[,] from~~
29 ~~which the resin has not been extracted, whether growing or not, and the~~
30 ~~seeds of such [A] plant. [Marijuana]~~

31 ~~[(b)] Does not include the mature stalks of such [A] plant[,] or~~
32 ~~the sterilized seed of such [A] plant [which] [THAT] is incapable of~~
33 ~~germination.~~

34 ~~[2.] [3.] "Public" means affecting or likely to affect a~~
35 ~~substantial group of persons.>>>~~

36 ~~<<Sec. 2. Section 13-2908, Arizona Revised Statutes, is amended to~~
37 ~~read:~~

38 ~~13-2908. Criminal nuisance; presumption; classification~~

39 ~~A. A person commits criminal nuisance:~~

40 ~~1. If, by conduct either unlawful in itself or unreasonable under~~
41 ~~the circumstances, such THE person recklessly creates or maintains a~~
42 ~~condition which THAT endangers the safety or health of others.~~

43 ~~2. By knowingly conducting or maintaining any premises, place or~~
44 ~~resort where persons gather for purposes of engaging in unlawful conduct.~~

45 ~~B. IT IS PRESUMED THAT A PERSON WHO CREATES EXCESSIVE MARIJUANA~~
46 ~~SMOKE [AND] [OR] ODOR CAUSES A CONDITION THAT ENDANGERS THE SAFETY OR~~
47 ~~HEALTH OF OTHERS.~~

48 ~~B. C. Criminal nuisance is a class 3 misdemeanor.>>~~

1 <<Section 1. Title 12, chapter 7, article 12, Arizona Revised
2 Statutes, is amended by adding section 12-991.01, to read:

3 12-991.01. Excessive marijuana odor; interference; nuisance;
4 failure to comply; violation; classification;
5 definition

6 {{A. EXCESSIVE MARIJUANA SMOKE OR ODOR THAT CROSSES A PROPERTY
7 BOUNDARY AND SUBSTANTIALLY AND UNREASONABLY INTERFERES WITH THE USE AND
8 ENJOYMENT OF NEARBY PRIVATE PROPERTY CONSTITUTES A PRIVATE NUISANCE.
9 LAWFUL POSSESSION OR USE OF MARIJUANA DOES NOT PRECLUDE A FINDING OF
10 NUISANCE UNDER THIS SECTION, EXCEPT THAT A COURT MAY CONSIDER AS A
11 MITIGATING FACTOR POSSESSION OF A VALID REGISTRY IDENTIFICATION CARD AS
12 DEFINED IN SECTION 36-2801.

13 B. A PERSON IS NOT LIABLE UNDER THIS SECTION UNLESS THE PERSON HAS
14 RECEIVED NOTICE OF THE INTERFERENCE AND FAILS TO ABATE IT WITHIN FIVE
15 DAYS.

16 C. AN AFFECTED PROPERTY OWNER OR RESIDENT MAY SEEK INJUNCTIVE
17 RELIEF, COMPENSATORY DAMAGES FOR LOSS OF USE AND ENJOYMENT, COSTS AND
18 REASONABLE ATTORNEY FEES AND OTHER EQUITABLE RELIEF THE COURT DEEMS
19 APPROPRIATE.

20 D. THIS SECTION DOES NOT PREEMPT A LOCAL ORDINANCE THAT IS MORE
21 PROTECTIVE OF PRIVATE PROPERTY RIGHTS. IF A CITY, TOWN OR COUNTY HAS
22 ADOPTED AN ORDINANCE REGULATING EXCESSIVE MARIJUANA SMOKE OR ODOR, AN
23 AFFECTED PROPERTY OWNER OR RESIDENT SHALL FIRST FILE A COMPLAINT WITH THE
24 LOCAL JURISDICTION BEFORE FILING AN ACTION UNDER THIS SECTION. IF THE
25 LOCAL JURISDICTION DECLINES TO ACT OR DOES NOT TAKE FINAL ACTION WITHIN
26 THIRTY DAYS AFTER THE COMPLAINT IS FILED, THE AFFECTED PROPERTY OWNER OR
27 RESIDENT MAY BRING AN ACTION IN JUSTICE COURT. THIS SECTION DOES NOT
28 PRECLUDE A HOMEOWNERS' ASSOCIATION OR CONDOMINIUM ASSOCIATION FROM TAKING
29 ACTION AGAINST A PROPERTY OWNER.

30 E. A PERSON COMMITS FAILURE TO COMPLY WITH A MARIJUANA SMOKE
31 NUISANCE ABATEMENT ORDER IF BOTH OF THE FOLLOWING EXIST:

32 1. A COURT OF COMPETENT JURISDICTION OR A CITY, TOWN OR COUNTY
33 ACTING UNDER LAWFUL AUTHORITY HAS ISSUED A WRITTEN ORDER DIRECTING THE
34 PERSON TO ABATE EXCESSIVE MARIJUANA SMOKE OR ODOR THAT CONSTITUTES A
35 NUISANCE PURSUANT TO THIS SECTION OR AN APPLICABLE LOCAL ORDINANCE.

36 2. THE PERSON KNOWINGLY VIOLATES OR REFUSES TO COMPLY WITH THE
37 ORDER.

38 F. EACH DAY A VIOLATION CONTINUES AFTER THE ORDER IS SERVED
39 CONSTITUTES A SEPARATE OFFENSE.

40 G. FAILURE TO COMPLY WITH A MARIJUANA SMOKE NUISANCE ABATEMENT
41 ORDER IS A PETTY OFFENSE.

42 H. FOR THE PURPOSES OF THIS SECTION, "EXCESSIVE MARIJUANA SMOKE OR
43 ODOR" MEANS AIRBORNE EMISSIONS RESULTING FROM THE BURNING, HEATING OR
44 VAPORIZING OF MARIJUANA OR MARIJUANA PRODUCTS THAT BOTH:

45 1. ARE DETECTABLE BY A REASONABLE PERSON OF ORDINARY SENSIBILITIES
46 ON OTHER PRIVATE PROPERTY.

47 2. OCCUR FOR MORE THAN THIRTY CONSECUTIVE MINUTES ON A SINGLE
48 OCCASION OR ON THREE OR MORE SEPARATE DAYS WITHIN A THIRTY-DAY PERIOD.}}>>

1 Sec. 2. Section 13-2917, Arizona Revised Statutes, is amended to
2 read:

3 13-2917. Public nuisance: abatement: presumption:
4 classification

5 A. It is a public nuisance, and is no less a nuisance because the
6 extent of the annoyance or damage inflicted is unequal, for anything:

7 1. To be injurious to health, indecent, offensive to the senses or
8 an obstruction to the free use of property that interferes with the
9 comfortable enjoyment of life or property by an entire community or
10 neighborhood or by a considerable number of persons.

11 2. To unlawfully obstruct the free passage or use, in the customary
12 manner, of any navigable lake, river, bay, stream, canal or basin, or any
13 public park, square, street or highway.

14 B. It is a public nuisance for any person to sell, offer to sell,
15 transfer, trade or disseminate any OBSCENE item ~~which is obscene~~ as
16 defined in section 13-3501, within two thousand feet, measured in a
17 straight line, of the nearest boundary line of any of the following:

18 1. Any building used as a private or public elementary or high
19 school.

20 2. Any public park.

21 3. Any residence district as defined in section 28-101.

22 C. The county attorney, the attorney general or the city attorney
23 may bring an action in superior court to abate, enjoin and prevent the
24 activity described in subsections A and B of this section.

25 D. ~~{{IT IS PRESUMED THAT THE CREATION OF}}~~ EXCESSIVE MARIJUANA
26 SMOKE ~~[AND] [OR]~~ ODOR ~~{{PURSUANT TO SECTION 12-991.01}}~~ IS ~~{{INJURIOUS TO~~
27 ~~HEALTH, INDECENT, OFFENSIVE TO THE SENSES AND AN OBSTRUCTION TO THE FREE~~
28 ~~USE OF PROPERTY THAT}}~~ ~~{{A PUBLIC NUISANCE IF THE PERSON'S CONDUCT IS~~
29 ~~INTENTIONAL OR THE PERSON KNOWINGLY AND SUBSTANTIALLY}}~~ INTERFERES WITH
30 THE COMFORTABLE ENJOYMENT OF LIFE OR PROPERTY ~~{{AND IS A PUBLIC~~
31 ~~NUISANCE}}.~~

32 ~~D.~~ E. Any person who knowingly maintains or commits a public
33 nuisance or who knowingly fails or refuses to perform any legal duty
34 relating to the removal of a public nuisance is guilty of a class 2
35 misdemeanor.

36 Enroll and engross to conform

37 Amend title to conform

J.D. MESNARD

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C: JV

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